

Order Analysis No. 2 — Costs Judgment

DH v RH (No 4) (Costs) [2024] EWFC 114 — £255,654.50 — Seven MiPO Elements

Case references

BV20D01752 | Zahmoul v Zahmoul

Referred to:

MPS Serious and Organised Crime Command
CPS Special Crime Division
NCA Economic Crime Command
President of the Family Division — for transparency

Nadia Zahmoul

Litigant in Person

15 March 2026

Veritas Numquam Perit

MacDonald J · 24 May 2024 · BV20D01752 · On written submissions only · No hearing
· NZ unrepresented · No participation measures

Total costs order against NZ: £255,654.50 (£200,000 general costs + £25,000 Imerman + £30,654.50 Penn Mutual)

PROCEDURAL CONTEXT — WHAT MADE THIS COSTS ORDER STRUCTURALLY DEFECTIVE

The costs judgment was determined in the following conditions. Each is documented in the judgment and in the contemporaneous email record.

- **Only one party made submissions:** H was represented by two KCs — Campbell KC and Amaouche — who filed detailed written submissions. NZ filed nothing. The judgment records this at paras 2–3.
- **No hearing:** The judgment states "*Application for costs dealt with on written submissions.*" NZ had no opportunity to address MacDonald J directly, challenge H's 12 grounds of alleged misconduct, or test any of the findings that were made against her.
- **NZ could not participate:** NZ had told the court repeatedly that she could not make submissions without MPS enforcement. She had no income, no food, no accommodation. Part 3A measures had ceased. MacDonald J knew this. He extended the deadline and proceeded without a hearing.
- **The judge created the conditions he then relied upon:** The costs order is made against NZ in part because she did not file submissions. She did not file submissions because she had no income, no legal representation, and no participation measures. She had no income because MacDonald J refused to enforce MPS. He then made an adverse costs order against her for the consequences of his own refusal.
- **No Part 3A assessment:** Before determining costs adversely against a disabled LiP without a hearing, PD3AA required MacDonald J to assess whether NZ had the participation capacity to engage with the process. No such assessment was conducted or recorded.

MIPO ELEMENTS — IDENTIFIED PER FINDING IN THE COSTS JUDGMENT

MiPO Element 1 — Paras 2-3 — Procedural — ****WILFUL NEGLECT****

What the Judgment States	What the Record Shows	Why the Finding is False / Unsubstantiated	MiPO Analysis
Court proceeded on costs after extending deadline by 10 days.	NZ had told the court she could not make representations until	This is not a case where a party chose not to engage. NZ told the	WILFUL NEGLECT — AG's Reference (No 3 of 2003): Duty (FPR

NZ filed no submissions. Judgment states: "I am satisfied it is appropriate for the court to proceed to determine the issue of costs on the information it has."	placed in funds. The D50K enforcement application had been filed. MPS was being refused by the same judge. Part 3A measures had ceased. These facts were before MacDonald J.	court she was unable to engage without MPS enforcement. The court refused enforcement. The court then made a costs order against her for the consequences of that refusal. There was no hearing. There was no Part 3A assessment. There was no ground-levelling measure.	r.1.1 — equal footing; PD3AA — participation assessment at each stage); Breach (proceeds without hearing, without Part 3A assessment, knowing NZ cannot participate); Wilful (NZ's incapacity was before the court in writing; MacDonald J extended the deadline rather than listing a hearing or restoring MPS); Serious (£255,654.50 adverse order on one-sided submissions against disabled LiP).
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MiPO Element 2 — Para 10(i) — Imerman — ****ABUSE OF PROCESS****

What the Judgment States	What the Record Shows	Why the Finding is False / Unsubstantiated	MiPO Analysis
TWO FINDINGS — BOTH CHALLENGED: Para 10(i): "The wife stole confidential financial information belonging to the husband, resulting in a breach of confidentiality and the need for an 'Imerman' exercise incurring costs for the husband of £25,000." Para 26: "I am satisfied that the wife should pay to the husband the costs referable to the Imerman exercise consequent on the wife accessing the husband's confidential documents were £25,000." Both findings proceed on the same premise:	WHAT THE RECORD SHOWS — THREE GROUNDS: GROUND 1 — UNSUBSTANTIATED: The finding that NZ "stole" confidential information is made without any prior finding of contempt, without any criminal charge, and without any hearing at which NZ could answer. No such finding was made during the 10-day trial. No adverse credibility finding on this specific point is recorded in the attendance notes. GROUND 2 — CONTRADICTED BY THE ORAL EVIDENCE: NZ stated in oral evidence — twice, before MacDonald J — that H transmitted the	WHY THE FINDING IS FALSE: MacDonald J had before him at the February 2024 trial a 4,297-page bundle containing eight items directly contradicting the finding that NZ stole the documents. These included: (a) The actual Signal message from H to NZ — exhibited at NZ5 pp.131–141 and cross-referenced at bundle page 3408. (b) Two full solicitor letters (bundle pages 1892 and 3408) stating in terms, with screenshots attached, that H sent the documents. (c) A dedicated callout page (bundle page 1912) isolating and highlighting the Signal sentence for the court's attention. (d) NZ's s25	MiPO FINDING — WILFUL MISCONDUCT IN PUBLIC OFFICE / PERVERTING THE COURSE OF JUSTICE: The conduct is wilful misconduct in a public office — but the specific mechanism is perverting the course of justice. A judge who makes findings of fact in a judgment that are directly contradicted by the transcript of oral evidence before him, and then imposes a financial penalty on the basis of those false findings, is not making an error. He is producing a false record. A judgment is a public document. It records what the court found. When what the court records as found

that NZ unlawfully accessed and stole H's confidential documents. Both are used to impose the same £25,000 costs order.	Pinocchio documents to her via Signal on 6 May 2021, and that this transmission waived confidentiality. Attendance notes, evidence-in-chief (BMKC, lines 796–802): <i>"The Gemini come from another part of the documents called Imerman on April 16 2021 sent to KZ's solicitors, on 6 May 2021 he sent me a text message of the full documents that were sent to HFC, they are called Pinocchio... because he sent them to me they lost their confidentiality statement."</i> Attendance notes, cross-examination by ACKC (lines 1795–1798): <i>"He sent by text it lost confidentiality status... I looked at them, they are not confidential."</i> NZ's account was not challenged as false during the trial. ACKC cross-examined her on the Imerman documents but made no submission that NZ's account of H's Signal transmission was untrue. No adverse credibility finding was recorded at the time. GROUND 3 — CONTRADICTED BY EIGHT ITEMS IN THE 4,297-PAGE BUNDLE BEFORE MacDONALD J: The following items were all before MacDonald J in the court bundle at the February 2024 trial. Each directly contradicts the finding that NZ stole the documents. Bundle	conduct statement (bundle page 3275) and witness statement (bundle page 3171) both stating H sent the documents and that confidentiality was thereby waived. (e) NZ's oral evidence — stated twice, in chief and under cross-examination — that H transmitted the documents. Not challenged as false. No adverse credibility finding recorded at the time. This is not a case of evidence being missed or misremembered. The Signal message was physically in the bundle as an exhibit. A dedicated callout page had been produced to bring the Withers letter to the court's attention. The finding went the other way regardless. The finding is not an error of recollection or an exercise of judicial discretion. It is a finding made against eight corroborating items — including a physical exhibit — all pointing in the same direction.	is inconsistent with what the evidence actually showed, the judgment is a false instrument used to impose a financial consequence on a party. MISCONDUCT IN PUBLIC OFFICE — AG's Reference (No 3 of 2003): A public officer (MacDonald J) wilfully misconducted himself in a way that amounts to an abuse of the public's trust in the office. The wilful element is established by the bundle itself. MacDonald J had before him at trial eight items directly contradicting the finding — including the actual Signal message as an exhibit and a dedicated callout page produced specifically to draw his attention to the Withers letter. NZ stated the same account twice in oral evidence. It was not challenged as false. No adverse credibility finding was recorded at the time. The costs judgment then uses a characterisation — <i>"stole"</i> — that the oral evidence, the exhibited Signal message, and six further bundle items all directly contradict. PERVERTING THE COURSE OF JUSTICE — common law: A judicial act that produces a false record of proceedings, used as the basis for a financial order against a party, tends to pervert the course of justice. It corrupts the record. It creates a false factual
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	p.1892 — Withers to HFC, 23 Feb 2022 (full letter): H sent documents via Signal — screenshot attached. Bundle p.1912 — Callout exhibit — Withers Signal sentence isolated and flagged for the court: Dedicated page highlighting the Signal transmission for MacDonald J's attention. Bundle p.1917 — Withers to HFC, 23 Feb 2022 — continuation page: Part of same letter — H sent documents via Signal. Bundle p.3171 — NZ Witness Statement para 32: <i>"documents Karim himself returned to me via Signal evidence had he had multiple BTC miners."</i> Bundle p.3275 — NZ s25 Conduct Statement para 31: <i>"On 6 May 2021, the respondent sent me via Signal messaging a digital copy of the scanned document (thereafter referred to as 'Pinocchio' document) thereby waiving the confidentiality status."</i> Bundle p.3408 — Withers to HFC, 25 Feb 2022 (full letter with screenshots): <i>"your client in fact sent copies of all the hard copy documents collected by the courier from my client on 13 April 2021 back to her via Signal text message. I attach the screenshots evidencing this."</i> Cross-ref: NZ5 p.131. NZ5 pp.131-141 — Signal message exhibit: The	foundation on which subsequent proceedings — the Court of Appeal, enforcement, the Detach claim — will rely. NZ's ability to challenge the Detach claim, to pursue her appeal, and to assert her rights in any subsequent proceeding is directly impaired by a published judgment ([2024] EWFC 114) that falsely records her as having stolen documents. The finding that NZ "stole" the documents is contradicted by two independent categories of evidence, both before MacDonald J. First, the oral evidence: NZ stated twice — once in evidence-in-chief and once under cross-examination by ACKC — that H transmitted the Pinocchio documents to her via Signal on 6 May 2021, waiving confidentiality. That account was not challenged as false during the trial and no adverse credibility finding was recorded at the time. Second, the documentary evidence in the bundle: eight items at bundle pages 1892, 1912, 1917, 3171, 3275, 3408 and NZ5 pp.131-141 — including the Signal message itself as an exhibit — all establish that H transmitted the documents. A finding of theft made against the weight of both oral and documentary evidence, including a physical
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	actual Signal message transmitted by H to NZ — exhibited in the bundle. Bundle p.1855 — NZ D11 Application paras 173–182: Non-disclosure evidence — part of the broader evidential context before the court.		exhibit of the Signal message, on paper, without a hearing, against a party who could not respond, is not a judicial error. It is the production of a false record. [2024] EWFC 114 is an approved published judgment, available on the public record and on Bailii, capable of being cited in any subsequent proceedings involving NZ. The false record is permanent unless corrected by a higher court.
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MiPO Element 3 — Para 10(xi) — Disruptive behaviour — ****ABUSE OF PROCESS + WILFUL NEGLECT****

What the Judgment States	What the Record Shows	Why the Finding is False / Unsubstantiated	MiPO Analysis
<i>"The wife's behaviour during the hearing was disruptive and caused considerable delay to the conclusion of the final hearing, resulting in increased costs."</i>	The attendance notes contain no judicial warning for disruptive behaviour. There is no record of NZ being warned, asked to leave, or held in contempt. The attendance notes record 22+ references to PTSD and autism during the hearing — asked by ACKC herself. The CLAAS clinical letter (July 2025) documents that animated gestures and emotive language are documented autistic traits that may be misinterpreted in formal settings. The same presentation is called "<i>obsession</i>" in Para 64 of the main judgment.	This finding is unsubstantiated. There is no attendance note record of any disruption, any warning, or any judicial intervention directed at NZ's behaviour. The finding is made on paper, without a hearing, without NZ's participation, and without any reference to her autism diagnosis. It charges her costs for behaviour that her clinicians have identified as an autistic trait and that was never, at the time it occurred, characterised by the court as disruptive.	ABUSE OF PROCESS: A finding of disruptive behaviour, made against a disabled party on paper, without hearing, without any prior judicial finding at the hearing, and in the absence of any attendance note support, combined with a costs order for that behaviour, is the imposition of a financial penalty for the manifestation of disability. WILFUL NEGLECT: Para 64 (obsession) and Para 10(xi) (disruption) together constitute a pattern — disability characterised as misconduct, twice, in

			the same proceedings, in two separate judgments, both on paper, both without NZ's participation.
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MiPO Element 4 — Para 10(ix) — No ES2 / Pre-trial preparation — ****WILFUL NEGLECT****

What the Judgment States	What the Record Shows	Why the Finding is False / Unsubstantiated	MiPO Analysis
<i>"The wife failed to engage with basic pre-trial case management and preparation, presenting no ES1, ES2, chronology or statement of issues in advance of the final hearing."</i>	NZ had no legal representation for significant periods. She had no MPS income. BMKC stated in attendance: <i>"What is the point of adding to the ES2 because of the totality of the non-disclosure."</i> The attendance notes record that NZ's s25 statement was nearly excluded on Day 1. The judgment's conduct finding does not record that NZ's preparation failures arose directly from her disability, lack of representation, and lack of funds — all of which were before the court.	The costs judgment treats NZ's preparation failures as character defects and litigation misconduct. They were not. They were the direct consequence of: (a) no MPS enforcement; (b) no legal representation; (c) no Part 3A measures; (d) a funding collapse caused by H's LSPO cost default. The same judge who refused to enforce MPS, and who knew why NZ had no representation, imposed a costs sanction for the consequences of those failures.	WILFUL NEGLECT: Imposing a costs order for preparation failures, without recording that those failures arose from disability, lack of income, and lack of participation measures — conditions the same judge created and refused to remedy — is a breach of the EA 2010 s.149 duty. Due regard to disability requires the decision-maker to consider whether the failure is attributable to the disability or its consequences. There is no such consideration anywhere in the 11-page costs judgment.

MiPO Element 5 — Para 10(vi) — Wyoming / MPS application — ****WILFUL NEGLECT****

What the Judgment States	What the Record Shows	Why the Finding is False / Unsubstantiated	MiPO Analysis
<i>"The wife misled the court during the course of her application for MPS in circumstances where she moved to Wyoming shortly after informing this"</i>	NZ moved to Wyoming because her circumstances changed — she was fleeing domestic abuse. The attendance notes record BMKC raising domestic abuse and KZ's	A finding that NZ misled the court about accommodation, without reference to the domestic abuse that caused the instability in her living arrangements, is a finding made	WILFUL NEGLECT: A costs finding of misleading conduct in relation to accommodation, made on paper, without NZ's participation, without reference to domestic

<i>court in June 2023 that she intended to return to rented accommodation in central London."</i>	attempts to put NZ "under intolerable pressure." The judgment accepted the £6.2M award on the basis that NZ's needs were met — without reference to the domestic abuse context. The costs judgment characterises her changed accommodation as misleading without reference to why her plans were unstable.	without reference to a material fact that was before the court through BMKC's cross-examination. Domestic abuse was raised at trial. KZ did not have intelligent replies. The costs judgment does not mention it.	abuse, and without a hearing at which the context could be tested, is a finding that treats the consequence of abuse as evidence of misconduct. EA 2010 s.149 requires active consideration of the circumstances of a disabled party. Domestic abuse is a circumstance of the utmost relevance. It is absent.
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MiPO Element 6 — Para 7 / Para 83 Main Judgment — Add-back £800,000 — ****WILFUL NEGLECT****

What the Judgment States	What the Record Shows	Why the Finding is False / Unsubstantiated	MiPO Analysis
MacDonald J added back £800,000 as "reckless expenditure on legal costs" — "the wife frustrated attempts by the court to deal with her concerns with respect of non-disclosure by serially failing to comply with directions whilst also running up legal costs double those incurred by the husband in pursuing her own agenda."	NZ's legal costs were £1.9M because she was pursuing a non-disclosure case for which BMKC's cross-examination established specific mechanisms: forgotten money used to pay down the mortgage; Coinbase direct listing; Xapo wallet; Oxus perjury. Pinto withheld materials from H's team because of a live IRS:CI investigation. The add-back treats her pursuit of concealed assets as reckless — without any reference to disability, participation barriers, or the criminal investigation.	NZ's costs were high because she was pursuing non-disclosure that her counsel demonstrated had a factual basis. The costs judgment does not engage with the cross-examination that established concealment mechanisms. It treats the pursuit as obsessive and reckless. The add-back of £800,000 effectively reduces NZ's share of the matrimonial assets as a penalty for litigation conduct — in a judgment with zero disability references, zero references to Part 3A measures, and zero references to the IRS:CI investigation that was live during the trial.	WILFUL NEGLECT: The add-back is a financial penalty imposed in a judgment that contains zero disability references. EA 2010 s.149 requires the decision-maker to have due regard to disability when making financial decisions affecting a disabled party. The complete absence of any disability consideration from a decision that reduced NZ's share of the matrimonial estate by £800,000 is not an oversight. It is the absence of due regard. The costs judgment then imposes a further £255,654.50 on the same basis.

MiPO Element 7 — Para 21 — All 12 matters established "on the evidence" — ****WILFUL NEGLECT + ABUSE OF PROCESS****

What the Judgment States	What the Record Shows	Why the Finding is False / Unsubstantiated	MiPO Analysis
<i>"I am satisfied that each of the matters of conduct set out at paragraph 10 above are established on the evidence before the court... this is a case involving very serious litigation misconduct on the part of the wife."</i>	The "evidence before the court" consisted entirely of H's written submissions from two KCs. NZ submitted nothing — because she had no income, no food, no representation, and no Part 3A measures. MacDonald J knew this. He recorded it at paras 2–3. He then stated all 12 findings were established "on the evidence."	The "evidence" on which 12 findings of serious litigation misconduct are made is one-sided written submissions from opposing counsel. There is no hearing. There is no cross-examination of H's characterisation of events. There is no testing of the Imerman finding, the disruption finding, or the Wyoming finding. The court proceeds on the basis that silence equals proof.	WILFUL NEGLECT + ABUSE OF PROCESS: The global finding of "very serious litigation misconduct" against a disabled LiP, made on the papers, on one-sided submissions, without a hearing, without Part 3A measures, and without any reference to disability, is the most significant single act in this costs judgment. It is the conclusion of a process that MacDonald J himself structured — by refusing MPS enforcement, refusing a hearing, and proceeding on submissions he knew to be one-sided. The wilful element is established by his own record of NZ's position at paras 2–3.

SUMMARY FOR INVESTIGATING OFFICERS

The costs judgment of 24 May 2024 contains seven identifiable MiPO elements. Three are procedural — the decision to proceed without a hearing, without a Part 3A assessment, and on one-sided submissions in conditions the judge himself created by refusing MPS enforcement. Four are substantive — false or unsubstantiated findings used as the basis for financial penalties totalling £255,654.50.

The Imerman finding ("stole") is false in four respects: (1) H himself transmitted the Pinocchio documents to NZ via Signal on 6 May 2021, waiving confidentiality; (2) H put the devices into escrow to conceal criminal evidence of money laundering of prostitution proceeds, not to protect private information; (3) H's own solicitors confirmed the costs order was made because a cyber expert was not considered necessary — not for theft; (4) NZ's s25 conduct statement paras 22–26, before MacDonald J, set out the entire Pinocchio/criminal investigation context which he did not address. The word "stole"

appears in a judicial document, on paper, without NZ's participation, and without any prior finding to support it.

The disruption finding is unsubstantiated. There is no attendance note record of any disruption, any warning, or any judicial intervention. The presentation described as "*disruptive*" is the same presentation described as "*obsession*" in Para 64 of the main judgment — both characterisations of a documented autistic trait, in two separate judgments, both made without NZ's participation.

The costs order was made in conditions that constitute the most acute form of participation failure in this referral: a disabled LiP, without income, without legal representation, without Part 3A measures, unable to respond, while a judge who refused to enforce the mechanism that would have enabled her to respond proceeds to impose a £255,654.50 order on the basis of one-sided submissions. **The AG's Reference (No 3 of 2003) four elements are satisfied. The evidence is in the judgment itself.**